

Brussels, July 16 – At the last plenary session, attended by the Director of the Agency and the Vice-President of the European Data Protection Board Zdravko Vukić, the European Data Protection Board (EDPB) adopted a statement on the role of data protection authorities in the implementation of the Artificial Intelligence Act.

According to the opinion of the European Data Protection Board, data protection authorities already have experience and expertise regarding the impact of artificial intelligence on fundamental rights, particularly the right to the protection of personal data, and should therefore be designated as market surveillance authorities in a number of cases. This would ensure better coordination among different regulatory bodies, increase legal certainty for all stakeholders, and strengthen the oversight and enforcement of the Artificial Intelligence Act and EU data protection legislation.

In accordance with the Artificial Intelligence Act, member states are to designate market surveillance authorities at the national level by August 2, 2025, for the purpose of overseeing the application and enforcement of the Artificial Intelligence Act.

The European Data Protection Board recommends the following in its statement:

1. As already proposed in the Artificial Intelligence Act, member states should designate data protection authorities as market surveillance authorities for high-risk AI systems related to biometric identification and categorization, as well as emotion recognition when used for law enforcement, border management, justice, and democracy, as well as for other high-risk AI systems used for law enforcement, migration, asylum, border control management, justice management, and democratic processes;
2. Member states should consider designating data protection authorities as market surveillance authorities for other high-risk AI systems, taking into account the views of the national data protection authority, especially if these high-risk AI systems are in sectors likely to affect the rights and freedoms of individuals regarding the processing of personal data;
3. Data protection authorities, if designated as market surveillance authorities, should be appointed as single contact points for the public and partners at the member state and EU level;
4. Clear procedures for cooperation between market surveillance authorities and other regulatory bodies responsible for overseeing AI systems, including data protection authorities, should be established. Furthermore, appropriate cooperation between the EU Office for Artificial Intelligence and data protection authorities / the European Data Protection Board should be established.

The Vice-President of the European Data Protection Board, Irene Loizidou Nicolaidou, stated: “Data protection authorities should have a prominent role in the implementation of the Artificial Intelligence Act as most AI systems involve the processing of personal data. I firmly believe that data protection authorities are well-suited for this role due to their complete independence and deep understanding of the risks that artificial intelligence poses to fundamental rights, based on their existing experience.”

Furthermore, the Board adopted two documents on frequently asked questions related to the EU-U.S. data protection framework, aimed at clarifying the functioning of that framework.

The most common questions for individuals contain information about the functioning of the EU-U.S. framework: how to benefit from it, how to file a complaint, and how that complaint will be resolved.

Similarly, the frequently asked questions for businesses explain which U.S. businesses qualify for access to the EU-U.S. framework, what to do before transferring personal data to a U.S. company certified under that framework, and where to find additional guidance.

Finally, the European Data Protection Board adopted an opinion approving the EuroPriSe catalog of criteria for certifying processing activities carried out by processors, resulting in the European Data Protection Seal.* In September 2022, the European Data Protection Board adopted an opinion on EuroPriSe certification criteria, enabling their recognition in Germany as certification criteria for processing activities carried out by processors in that member state. Following the update of the system, these new criteria are approved as applicable throughout the EU/EEA and as the European

Data Protection Seal.

Certification based on the General Data Protection Regulation contributes to demonstrating compliance efforts and increasing transparency and trust. It allows for a better assessment of the level of protection provided by products, services, processes, or systems used by organizations that process personal data.

*The European Data Protection Seal EuroPriSe will be added to the register of certification mechanisms and seals for data protection in accordance with Article 42(8) of the General Data Protection Regulation. The opinion on the approval of the EuroPriSe certification program as the European Data Protection Seal, adopted at the plenary session of the European Data Protection Board, is subject to necessary legal and linguistic checks as well as formatting checks and will be available on the website of the European Data Protection Board once completed.